

2012 WL 245394 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Jharolin MELO, Plaintiff,

v.

THE CITY OF NEW YORK, The New York City Police Department and
Police Officer **Louis Cardenas**, Shield Number 028189, Defendants.

No. 0300367-2012.
January 13, 2012.

Summons

[Mark I. Cohen](#), Esq., Cohen, Frankel & Ruggiero, LLP, Attorneys for Plaintiff, 20 Vesey Street, Suite 1200, New York, New York 10007, (212) 732-0002.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty [30] days after the service is complete if this summons is not personally delivered to you within the State of New York); in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York January 13, 2012

VERIFIED COMPLAINT

Plaintiff, by her attorneys, COHEN, FRANKEL & RUGGIERO, LLP, sets forth the following as her verified complaint:

1. On January 17, 2011, Defendant THE CITY OF NEW YORK (Defendant CITY) was and still is a municipal corporation formed under and by virtue of the laws of the State of New York.
2. On January 17, 2011, Defendant THE NEW YORK CITY POLICE DEPARTMENT (Defendant NYPD) was and still is an agency of Defendant CITY.
3. On January 17, 2011, Defendant POLICE OFFICER **LOUIS CARDENAS**, Shield Number 028189 (Defendant CARDENAS, was and still is an employee of Defendant NYPD.
4. A Notice of Claim was filed with the Office of the Comptroller of the City of New York on April 15, 2011, less than ninety (90) days from the date of the occurrence.
5. More than thirty (30) days have elapsed since the presentation of said Notice of Claim to Defendants and no adjustment, settlement, compromise or payment has been made by Defendants.

6. Defendants have not requested or scheduled an oral examination of Plaintiff pursuant to Section 50H of the General Municipal Law.

7. This action is being commenced within one (1) year of the date of the occurrence alleged herein and in compliance with Section 50E of the General Municipal Law.

8. At all times hereinafter mentioned, Defendant CITY maintained an organized police department and police force as a unit and agency of Defendant CITY. Said police department and police force is Defendant NYPD herein.

AS AND FOR A FIRST CAUSE OF ACTION

9. Plaintiff repeats, reiterates and realleges each and every allegation contained in ¶¶ 1-8 herein with the same force and effect as if hereinafter set forth at length.

10. On January 17, 2011, at or about 4:40 a.m. on that day, at or near 1834 Webster Avenue, Bronx, New York 10457, in the City and State of New York, County of Bronx, Plaintiff was caused to be unlawfully arrested by Defendant CARDENAS and other unknown agent(s), servant(s) and/or employee(s) of Defendant CITY and Defendant NYPD, while acting in the course and scope of his/her/their employment.

11. Said arrest of Plaintiff was without probable cause and was done carelessly, recklessly, negligently, unlawfully and/or intentionally.

12. Subsequent to said arrest, Plaintiff was caused to be unlawfully imprisoned Defendant CARDENAS and other unknown agent(s), servant(s) and/or employee(s) of Defendant CITY and Defendant NYPD, while acting in the course and scope of his/her/their employment.

13. Said imprisonment of Plaintiff was done carelessly, recklessly, negligently, unlawfully and/or intentionally.

14. By reason of the foregoing, Plaintiff has been damaged by Defendants and through no culpable conduct of her own, in the amount of ONE MILLION DOLLARS (\$1,000,000.00).

AS AND FOR A SECOND CAUSE OF ACTION

15. Plaintiff repeats, reiterates and realleges each and every allegation contained in ¶¶ 1-14 herein with the same force and effect as if hereinafter set forth at length.

16. On or about January 17, 2011, Defendant CARDENAS and other unknown agent(s), servant(s) and/or employee(s) of Defendant CITY and Defendant NYPD carelessly, recklessly, negligently, unlawfully and/or intentionally, while on duty and during the course and scope of his/her/their employment, used excessive force against, assaulted and battered Plaintiff in violation of Defendants' own rules and regulations regarding the use of excessive force, assault and battery and without any cause or provocation on the part of Plaintiff.

17. As a result of said careless, reckless, negligent, unlawful and/or intentional use of excessive force and assault and battery of Plaintiff by Defendant CARDENAS and other unknown agent(s), servant(s) and/or employee(s) of Defendant CITY and Defendant NYPD, Plaintiff was severely and seriously injured both bodily and mentally.

18. By reason of the foregoing, Plaintiff has been damaged by Defendants, and through no culpable conduct of her own, in an amount to be determined by the trier of fact.

AS AND FOR A THIRD CAUSE OF ACTION

19. Plaintiff repeats, reiterates and realleges each and every allegation contained in ¶¶ 1-18 herein with the same force and effect as if hereinafter set forth at length.

20. On or about January 17, 2011, agent(s), servant(s) and/or employee(s) of Defendant CITY and Defendant NYPD, with malice, carelessly, recklessly, negligently, unlawfully, and/or intentionally swore out a complaint against Plaintiff.

21. On or about January 17, 2011, and thereafter, under Docket Number 2011BX003039, in the Supreme Court of the State of New York, Bronx County, Plaintiff was caused to be maliciously prosecuted by agent(s), servant(s) and/or employee(s) of Defendant CITY and Defendant NYPD, with said agent(s), servant(s) and/or employee(s) knowing that said prosecution was without merit and, notwithstanding such knowledge, said agent(s), servant(s) and/or employee(s) with malice, carelessly, recklessly, negligently, unlawfully and/or intentionally, prosecuted Plaintiff upon meritless charges.

22. The charges remain pending as of this date.

23. By reason of the foregoing, Plaintiff has been damaged by Defendants, and through no culpable conduct of her own, in the amount of ONE MILLION DOLLARS (\$1,000,000.00).

AS AND FOR A FOURTH CAUSE OF ACTION

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in ¶¶ 1-23 herein with the same force and effect as if hereinafter set forth at length.

25. Defendant CITY and Defendant NYPD, through Defendant CARDENAS and other unknown agent(s), servant(s) and/or employee(s), acted under color of law, i.e. of the statutes, ordinances, regulations, customs and usages of the United States of America, the State of New York and the City of New York, in the unlawful arrest and imprisonment of Plaintiff; their actions deprived Plaintiff of her rights, privileges and immunities secured to her by the Constitution of the United States of America and the laws thereunder, pursuant to [Title 42 U.S.C. § 1981](#), [1983](#) and [1985](#) and to [28 U.S.C. § 1343](#).

26. By reason of the foregoing, Plaintiff has been damaged by Defendants, and through no culpable conduct of her own, in the sum of ONE MILLION DOLLARS (\$1,000,000.00).

AS AND FOR A FIFTH CAUSE OF ACTION

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in ¶¶ 1-26 herein with the same force and effect as if hereinafter set forth at length.

28. Defendant CITY and Defendant NYPD were negligent in the hiring, screening, training, instruction and/or supervision of Defendant CARDENAS and their other unknown agent(s), servant(s) and/or employee(s) and failed to take all steps proper and necessary to prevent the happening of the occurrence complained of herein.

29. As a result of Defendant CITY's and Defendant NYPD's negligence in the hiring, screening, training, instruction and/or supervision of Defendant CARDENAS and their other unknown agent(s), servant(s) and/or employee(s) who arrested, imprisoned and prosecuted Plaintiff maliciously, carelessly, recklessly, negligently, unlawfully and/or intentionally, she suffered said arrest, imprisonment and prosecution.

28. By reason of the foregoing, Plaintiff has been damaged by Defendants, and through no culpable conduct of her own, in the sum of ONE MILLION DOLLARS (\$1,000,000.00).

WHEREFORE, Plaintiff demands judgment on each of the first, third, fourth and fifth causes of action in the sum of ONE MILLION DOLLARS (\$1,000,000.00) and on the second cause of action for an amount to be determined by the trier of fact, together with statutory interest, the costs and disbursements of this action and any other relief as this court deems just, proper and equitable.

Dated: New York, New York January 13, 2012

Yours, etc.

Mark I. Cohen

COHEN, FRANKEL & RUGGIERO, LLP

Attorneys for Plaintiff

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